

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF KENTUCKY
AT BOWLING GREEN

JIMMY LECROY	)	
	)	
Plaintiff	)	
	)	
v.	)	Cause No. 1:21-CV-00141-GNS-HBB
	)	
	)	<u>AMENDED COMPLAINT</u>
	)	
	)	
AZARIA ALLURE and	)	
US CORRECTIONS, LLC	)	
	)	
Defendant.	)	

Comes the Plaintiff, Jimmy LeCroy, by and through counsel, and for his causes of action against the Defendants states as follows:

I.

At all times material hereto, the Plaintiff was resident of Alabama.

II.

Upon information and belief, at all times material hereto, Defendant, Azaria Allure was a resident of 206 Jackson Avenue, Ape Canaveral, Florida. Additionally, upon information and belief the Defendant, Azaria Allure, was acting in the course and scope of her employment with the Defendant, US Corrections, LLC.

III.

The Defendant, US Corrections, LLC is a Foreign Limited Liability company doing business for profit. The agent for service of process is Cogency Global, 828 Lane Allen Road, Suite 219, Lexington, Kentucky 40504.

IV.

On October 7, 2019, the Defendant, Azaria Allure, in the course and scope of her employment with the Defendant, US Corrections, LLC, negligently and carelessly operated her vehicle in which Plaintiff was passenger so as to cause the vehicle to slide off an embankment and overturn.

V.

The aforesaid conduct of Defendant, Azaria Allure, upon information and belief, included the following:

- a. Failure to properly observe the roadway;
- b. Failure to yield the right of way to oncoming traffic;
- c. Failure to properly brake her vehicle;
- d. Failure to maneuver her vehicle so as to cause a collision;
- e. Failure to maintain adequate control over her vehicle;
- f. Failure to take proper evasive action so as to avoid an accident;
- g. Failure to maintain a proper lookout;
- h. Failure to properly assess and follow a safe route of travel; and
- i. Failure to obey the rules of the road, the law of the Commonwealth of Kentucky, in and about operating his vehicle on the highways and roadways of the Commonwealth of Kentucky;

VI.

The Defendant, US Corrections, LLC is legally responsible and liable for its employee, Azaria Allure's careless, negligent, grossly negligent, wanton and dangerous operation of its motor vehicle, with reckless disregard of the lives and safety of others (such

as to constitute malice) on October 7, 2019 pursuant to the principals of *respondeat superior* and/or the law of agency.

VII.

On October 7, 2019, the Defendant, US Corrections, LLC, independent of any liability of its agent, Azaria Allure, failed in its duty of care toward Plaintiff, including the failure of its duties to:

- a. supervise
- b. train
- c. instruct
- d. hire safe and qualified drivers who obey laws, rules and regulations pertaining to the safety of others using the roadways, including Plaintiff.

VIII.

US Corrections, LLC's carelessness, negligence, gross negligence, wanton conduct and reckless disregard for the lives and safety of others (constituting malice), was a substantial factor in causing Plaintiff to incur the damages at issue in this Complaint.

IX.

On October 7, 2019, and independent of any liability of the Defendant Azaria Allure, the Defendant US Corrections, LLC failed in its duty of care towards the Plaintiff, upon information and belief, including:

- a. negligently entrusting the driver of the vehicle with the vehicle when it knew or should have known that the driver lacked sufficient skill, judgment and prudence in the operation of a commercial motor vehicle;

b. failing to adequately instruct the driver in the safe operation of the vehicle prior to entrusting her with the vehicle;

c. failing to prevent the driver from operating the tractor trailer until she had sufficient ability to operate the motor vehicle safely;

d. failing to adequately ascertain that the driver of the vehicle lacked the ability necessary to safely operate the vehicle under the circumstances; and

e. failure to provide the driver of the vehicle with the equipment necessary to safely operate the vehicle;

X.

Count 1 – Negligence and Gross Negligence

Paragraphs I – IX hereof are incorporated herein as if set forth in full.

XI.

The aforesaid careless, negligent, grossly negligent, wanton and dangerous conduct and reckless disregard for the lives and safety of others (constituting malice) of the Defendants were a substantial factor in causing the Plaintiff to suffer severe bodily injury, to incur medical expense and to incur medical expense in the future, he has suffered the destruction of wage earning capacity and has and will in the future endure pain and suffering, both physical and mental.

XII.

Count 2 – Punitive Damages

Paragraphs I – XI hereof are incorporated herein as if set forth in full.

XIII.

The Defendants, US Corrections, LLC and Azaria Allure, by their acts and omissions as set forth above, acted toward the Plaintiff with oppression, fraud, malice, gross negligence and/or reckless disregard for the lives and safety of others to a degree sufficient to warrant the imposition of punitive damages to deter such further conduct on behalf of Defendants or similarly situated parties, in an amount which exceeds the jurisdictional minimum of this Court.

WHEREFORE, the Plaintiff demands judgment against the Defendants in an amount sufficient to establish the jurisdiction of this Court, for his costs herein expended, for punitive damages and for any and all other just and proper relief to which he may appear entitled.

PLAINTIFF DEMANDS TRIAL BY JURY.

Respectfully submitted,

M. Keith Poynter

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